Discrimination case against the State of Queensland (Queensland Police Service)

Case plan and draft complaint. Prepared 11 November 2026. For discussion with your lawyers before anything is lodged. Not for service.

1. What this is built on

Read for this plan: the police notice of 1 December 2024; the court order of 3 December 2024 and the record of 25 February 2025; the police statements of the three officers, your former partner and her friend; the building manager's declaration; the seizure receipt; the body-worn camera transcripts for 24 February and 22 March 2025; the Policelink replies of April 2025; your phone log; the council and pet-registry records; the diagnosis email of 24 October 2024; the Ethical Standards emails and outcome of 2026; and your working notes.

Two warnings about the material. The camera transcripts are machine-made and the speaker labels are not reliable: every line quoted here must be checked against the footage before it is used. Three documents could not be found or read: your Human Rights Commission complaint (EDR19098) and its report, your friend's statutory declaration, and any record of a report by you to police on 1 December 2024.

2. The honest starting point

A discrimination case is won by showing three things: you were treated worse than a person without the attribute would have been; the situations were not materially different; and the attribute was a substantial reason. The usual way to prove the third is to show that the reason police gave was untrue on what they knew.

Measured against the documents, three of the four ideas do not hold as claims:

- **The dog was given to her because she is female.** Police held her statement that you signed the dog over on 17 December 2024, a pedigree letter of 6 January 2025 naming her, and a burglary charge. On camera you are asked about the change of ownership and answer that it "is just a registration name". Your two accounts of the transfer differ (signed "to build some trust"; "I did not send or submit any paperwork"). The only dated council record found in your name is from May 2025. Police have a documented reason that is not your sex.
- **You called first and nobody came.** Your phone log shows a 37-minute call to Policelink on the evening of 23 February. Her friend's triple-zero call was made minutes later and she also waited about six hours. Both calls were treated the same.
- **It happened because you had complained before.** Your 2023 and 2024 complaints were not about discrimination, so this is not victimisation under the discrimination Acts, and nothing on file links the 2025 officers to those complaints.

The fourth idea, the 1 December 2024 contact, gives evidence but not a strong claim: the notice records that police took your version by phone and relied on her injury and your recorded partial admissions. No record of a report by you that night, or of a "civil" reply, has been found. The "civil" line is from 22 March 2025.

3. The case that does hold

Theory in one sentence. On 24 February 2025 police put the man named on the lease out of his home and restored access for a woman who was not on the lease and not protected by the order, giving the building manager a reason they had been told was wrong; and in 2026 police handled the resulting complaint in a way that took no account of a psychiatric condition recorded in their own notice.

Claim A: sex. Exclusion from the home on 24 February 2025

What police knew, in their own words and documents:

1. The order of 3 December 2024 had two conditions: good behaviour, and that you "must on or before 01/01/2025 allow the aggrieved to enter the premises ... in the company of a police officer to recover undisputed personal property". It had no condition keeping you out.

2 On camera at about 2:08 to 2:19 am: "technically you can be here"; "technically he's allowed to be here"; "technically he's not breaching the DVO by being here ... there's nothing on that order that's saying he can't be here".

3 At about 2:28 am the building manager told the attending officer both names were on the lease and "as far as I'm concerned, they're both allowed to be there".

4 At about 2:23 am an officer asked her friend "would you want any support services or referral services?" No welfare inquiry was made of you.

5 At about 2:35 am you were arrested and removed. Her friend stayed.

6 At about 5:20 am an officer told the building manager to reinstate the access fobs "because cory's not the leaseholder". The manager answered that the change "was not accepted by the property manager". The officer said: "you're inconveniencing a domestic violence victim survivor who's been put through a lot by her partner".

7 That evening an officer told your mother you had "essentially terrorized a female person" and "we have to defer to the judgment of our other police that have made that call".

8 On 25 February 2025 the court recorded: "APPLICATION IS WITHDRAWN, TPO VACATED."

Why this is the claim: the reason given to the building manager ("not the leaseholder") was contrary to what the manager had told police three hours earlier and told them again on the same call. A stated reason shown to be untrue lets a tribunal look for the real one, and the language used ("female person", "victim survivor ... put through a lot by her partner", before any finding) points to an assumption about men and women in domestic disputes. The comparison is a woman named on the lease, under the same order, found in her own unit with her former partner's male friend staying there.

The weak joint: police will say you were removed because you were arrested, and a woman arrested on the same allegations would have been removed too. That answer stands or falls with the criminal case. One charge has been discontinued and the prosecution has proposed replacing the stealing-based charge with trespass. If the remaining charges end in your favour, the arrest stops explaining the exclusion and this claim becomes much stronger. If they do not, this claim fails.

Claim B: impairment. How the complaint was handled in 2026

1 The police notice of 1 December 2024 records that you have "a mental illness and requires medication". Police have held that record since that day. The diagnosis email is dated 24 October 2024.

2 On 18 June 2026 Ethical Standards asked for the court matter, the date, the charge and the officers' names by close of business the next day.

3 On 10 September 2026 the matter was finalised without contact. The outcome names no right and does not mention your condition.

This is a claim that a requirement was imposed that a person with your condition could not meet and that was not reasonable. It is inside the one-year limit, it does not overlap the court case, and the acts are proved by their own emails. It works only if your condition is why the one-day deadline could not be met. If you answered in time, drop the deadline and run this part under the Human Rights Act alone.

Evidence that supports both claims but is not a claim on its own

- The notice of 1 December 2024 records, as a ground, that your illness "can cause the resp to act crazy and go into rages without warning". It shows the stereotype was on the police record from the start.
- 22 March 2025: "regardless of what paperwork he has, we've got to seize the dog"; "It's my dog." "It doesn't matter"; "It would have been civil if you didn't get charged for stealing it".
- 4 April 2025: your break-and-enter report was declined in writing as "already been reported to Police with advice provided".
- Your family member's statement that officers called you a "criminal" and a "compulsive liar". It has no date or witnessing clause in the copy found.

4. What police will say, and the reply

- **"He was arrested."** Reply: the arrest followed on-camera statements that he was allowed to be there and a manager's confirmation of the lease. Hold this until the court case ends.
- **"She was the protected person."** Reply: her friend was not protected by the order and was not on the lease; the order had no exclusion condition; the application was withdrawn the next day.
- **"He had signed a notice of intention to leave."** Reply: the manager told police it had not been accepted and both names remained on the lease.
- **"It is out of time."** Reply: see section 6.
- **"He has complained about this already."** Reply: the earlier complaint ran under the Human Rights Act and ended unresolved with no recommendation.

5. What has to be fixed before lodging

1. The two versions of the dog transfer. Settle one account and keep the dog out of the claim.
2. "Last time I saw her was the 1st of December" against "never even seen her". Do not rely on either.
3. The time of entry against the time of the Policelink call. Your notes give three versions.
4. Your bail conditions from 24 February 2025. If they kept you from the unit, say so, because police will.
5. The lodging date and wording of EDR19098. It decides the time argument.
6. Whether you answered the 18 June 2026 request, and when.
7. Each camera line checked against the footage, with camera and clock time.

6. Route, timing and remedies

Route. One complaint to the Queensland Human Rights Commission under the Anti-Discrimination Act (sections 7(a) and (h), 8, 10, 11 and 101), with a Human Rights Act complaint about the outcome letter. Section 101 covers any police function, so it reaches the exclusion and the complaint handling. The State answers for its officers. If conciliation fails you can require referral to the tribunal, where facts pointing to discrimination shift the burden to police, and each side usually pays its own costs.

Why not the federal route. It covers "services" only, which does not fit an exclusion or an arrest. It is also closed for an act already complained of under a State discrimination law, and your earlier complaint, which raised disability discrimination over these events, gives police that argument.

Time. Claim B is in time until 18 June 2027. Claim A is out of time and needs good cause. The good cause is: a criminal case on the same events is still running; your health; you took the same events to the same Commission earlier; and nothing is lost to police because the footage exists and you asked for it to be kept. In-time and out-of-time acts can go in one complaint. The Commission may put Claim A on hold while the court case runs. That costs nothing.

When. After 6 January 2027, when the Human Rights Act complaint about the outcome becomes available, and after your lawyers have read it. Earlier if the criminal case ends first.

What to ask for. A written acknowledgment that you were named on the lease and that the order did not exclude you; correction of the police record; reassessment of your complaint by an officer outside Ethical Standards and Southport, with reasonable time to respond; an apology; compensation.

Odds, as my judgement. Claim A at tribunal: about one in five now, about two in five if the remaining charges end in your favour. Claim B: about one in three, if the deadline fact holds. Some outcome at conciliation: about two in five.

7. Draft complaint (for your lawyers to settle)

Respondent: State of Queensland (Queensland Police Service).

Attributes: sex (male); impairment (major depressive disorder, diagnosed 24 October 2024).

Area: performance of functions and exercise of powers under State law.

1 On 1 December 2024 police issued a protection notice naming me as respondent. The notice records that I have a mental illness.

2 On 3 December 2024 the Magistrates Court made a temporary order by consent without admissions. It required good behaviour and required me to allow the aggrieved to enter Unit 104 by 1 January 2025 to collect undisputed property. It did not exclude me from the unit.

3 I was named on the lease of Unit 104.

4 In the early hours of 24 February 2025 police attended Unit 104. Police footage records an officer saying I was "technically ... allowed to be here" and that there was "nothing on that order that's saying he can't be here".

5 At about 2:28 am the building manager told an officer by telephone that both names were on the lease and that both of us were allowed to be there.

6 An officer offered support services to a woman staying in the unit. She was not named on the lease or in the order. No welfare inquiry was made of me.

7 At about 2:35 am I was arrested and removed. The woman remained.

8 At about 5:20 am an officer told the building manager to reinstate access fobs for the aggrieved and her friend "because cory's not the leaseholder", and described the aggrieved as "a domestic violence victim survivor who's been put through a lot by her partner". The manager told the officer the change to the lease had not been accepted.

9 On 25 February 2025 the application was withdrawn and the order vacated.

10 I say I was treated less favourably than a woman in the same circumstances would have been treated, and that my sex, or assumptions made about men in domestic disputes, was a substantial reason.

11 On 18 June 2026 Ethical Standards Command required particulars of my complaint by close of business the next day. On 10 September 2026 it finalised the complaint without contacting me. Its outcome does not refer to my condition.

12 [Keep only if true.] I say the one-day requirement was one I could not meet because of my impairment and was not reasonable.

13 Some of these events are more than one year old. I ask the Commissioner to accept them because a criminal proceeding about the same events is still before the court, because of my health, and because I raised the same events with the Commission in complaint EDR19098.

8. What stays out

The dog as a claim. The six-hour wait. The earlier complaints about Southport. March 2026, until there is a document describing what happened. Anything about what you did on 23 February. Any description of the officers' motives.